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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

Franciscus Dylan Rosario,

PLAINTIFF,

v.

Subhi Abdelhalim;

CSAA Insurance Exchange;

PHILLIPS, SPALLAS & ANGSTADT LLP;

PRIYA D. NAVARATNASINGHAM;

ALBERTO REYNA;

MICHAEL R. CHAMBERS;

CARBONE, SMITH & KOYAMA;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

PLAINTIFF'S DEMAND FOR JUDICIAL SUMMARY OF FACTS

RELIEF REQUESTED

Plaintiff respectfully demands that the Court, based on the records and transcripts already before this Court (or properly subject to judicial notice), enter a judicial summary establishing the following facts as having been established for all purposes in this proceeding. Each fact below is drawn from court transcripts, official filings, or records not reasonably subject to dispute. Plaintiff requests the Court to decide and declare that these facts are established.

FACTS DEMANDED FOR JUDICIAL SUMMARY

FACT 1: CHAMBERS AND CARBONE SMITH & KOYAMA TRANSFERRED DEFENSE FILE TO PSA

Michael R. Chambers and Carbone, Smith & Koyama were defense counsel for Defendant Abdelhalim from August 2022 through May 4, 2023, and had possession of the defense file when the 911 audio, body-worn camera footage, and CAD materials were served during discovery. On May 4, 2023, Chambers and Carbone Smith & Koyama transferred the defense file to Phillips, Spallas & Angstadt LLP ("PSA") pursuant to the Substitution of Attorney.

Support: Substitution of Attorney, Transaction ID # 69953800, filed May 4, 2023; Hearing Transcript, February 18, 2025.

FACT 2: SUBSTITUTION OF DEFENSE COUNSEL

Phillips, Spallas & Angstadt LLP ("PSA") substituted in as defense counsel in *Rosario v. Abdelhalim*, CGC-21-594102, on May 4, 2023, replacing Chambers and Carbone Smith & Koyama.

Support: Substitution of Attorney, Transaction ID # 69953800, filed May 4, 2023.

FACT 3: JESSUP TESTIMONY ON PRODUCTION HISTORY

J. Jessup, Esq. (Plaintiff's counsel in the underlying action), testified under oath on February 18, 2025, that the 911 audio recording, body-worn camera footage (approximately five videos), and CAD log were served on defense counsel during discovery and depositions in August-September 2022.

Support: Reporter's Transcript, February 18, 2025, pretrial hearing, CGC-21-594102.

FACT 4: NAVARATNASINGHAM'S "NEWS TO ME" STATEMENT

Defendant Priya D. Navaratnasingham stated in open court on February 18, 2025, that the 911 call evidence was "news to me."

Support: Reporter's Transcript, February 18, 2025, pretrial hearing, CGC-21-594102.

FACT 5: MIL NO. 6

Motion in Limine No. 6, filed January 17, 2025, by Defendant Navaratnasingham on behalf of PSA, stated that recorded materials, including the 911 call audio, "were not produced in discovery."

Support: Clerk's Transcript, MIL No. 6, filed January 17, 2025, CGC-21-594102.

FACT 6: MIL NO. 17

Motion in Limine No. 17, filed January 17, 2025, stated that "Defendant has no idea where this 911 call log or audio recording came from."

Support: Clerk's Transcript, MIL No. 17, filed January 17, 2025, CGC-21-594102.

FACT 7: REYNA'S "NOT RECEIVED AS PART OF SUBPOENA" STATEMENT

Defendant Alberto Reyna stated at trial on April 16, 2025, that the supplemental police report was "not anything that we received as part of the subpoena."

Support: Reporter's Transcript, April 16, 2025, trial proceedings, CGC-21-594102.

FACT 8: REYNA'S "NOT SURE WHAT RECORDING" STATEMENT

Defendant Reyna stated at trial on April 16, 2025, that he was "not sure what recording" Plaintiff was referring to regarding the 911 call.

Support: Reporter's Transcript, April 16, 2025, trial proceedings, CGC-21-594102.

FACT 9: ABDELHALIM AUTHENTICATION OF 911 RECORDING

Defendant Subhi Abdelhalim authenticated the 911 recording at trial on April 17, 2025, stating verbatim: "Yes. That is my voice."

Support: Reporter's Transcript, April 17, 2025, RT Day 8, Line 1979, CGC-21-594102.

FACT 10: JURY VERDICT

The jury returned a 9-3 defense verdict on liability on April 25, 2025.

Support: Judgment, CGC-21-594102.

FACT 11: ENTRY OF JUDGMENT

Judgment was entered on April 25, 2025, and Notice of Entry of Judgment was filed April 29, 2025.

Support: CT Vol. 6, p. 1689 (Judgment); CT Vol. 6, p. 1691 (Notice of Entry of Judgment), CGC-21-594102.

FACT 12: TIME GAP—DISCOVERY TO MIL NO. 17 (883 DAYS)

From the date the 911 audio was served on defense counsel (August 18, 2022) to the date MIL No. 17 asserted it was "not produced during discovery" (January 17, 2025) is 883 days.

Support: Hearing Transcript, February 18, 2025; Clerk's Transcript, MIL No. 17, filed January 17, 2025, CGC-21-594102.

FACT 13: TIME GAP—PSA SUBSTITUTION TO "NEWS TO ME" (656 DAYS)

From the date PSA substituted in as defense counsel (May 4, 2023) to the date Navaratnasingham stated "news to me" (February 18, 2025) is 656 days.

Support: Substitution of Attorney, Transaction ID # 69953800; Hearing Transcript, February 18, 2025, CGC-21-594102.

FACT 14: TIME GAP—CAD NUMBERS TO MIL FILING (130 DAYS)

From the date CAD numbers were provided to Reyna (September 9, 2024) to the date MIL No. 17 was filed (January 17, 2025) is 130 days.

Support: Correspondence, September 9, 2024; Clerk's Transcript, MIL No. 17, CGC-21-594102.

FACT 15: COURT EXCLUDED SUPPLEMENTAL REPORT (LEG 3)

On April 16, 2025, the Court excluded the supplemental police report after defense counsel represented it was "not anything that we received as part of the subpoena," stating: "It is not evidence" and "it is not in the report."

Support: Reporter's Transcript, Day 7 (4/16/25), Lines 2888–2896, CGC-21-594102.

FACT 16: COURT DEFERRED 911 CALL ADMISSION (LEG 3)

On April 16, 2025, the Court deferred admission of the 911 call recording after defense counsel stated he was "not sure what recording" Plaintiff was referring to, requiring Plaintiff to testify first.

Support: Reporter's Transcript, Day 7 (4/16/25), Lines 3024–3057, CGC-21-594102.

FACT 17: COURT ACCEPTED "NEWS TO ME" WITHOUT VERIFICATION (LEG 3)

On February 18, 2025, the Court accepted Navaratnasingham's "news to me" representation without conducting a verification inquiry regarding defense-side possession or production history, responding: "I see. Okay."

Support: Hearing Transcript, February 18, 2025, p. 141, line 4221, CGC-21-594102.

FACT 18: REYNA REQUESTED "ALL DOCUMENTS" IN FEBRUARY 2024

Alberto Reyna, of PSA, requested "all documents, records stored in any format" relating to the collision on February 26, 2024, which would necessarily encompass the 911, CAD, and body-worn camera categories later portrayed as "unknown" or "not received."

Support: Reporter's Transcript, Day 7 (4/16/25), CGC-21-594102 (in substance: request made "on February 26, 2024…all documents, records stored in any format…regarding the report that occurred").

FACT 19: ABDELHALIM TESTIFIED "NO CONTACT" AT TRIAL

In the 911 recording, Defendant told the emergency operator, verbatim: "He cross from me, and he's barely hitting anything, but I'm calling for him" and "BOOM! I just hit him. HIT HIM. There was barely anything. I'm calling the 911 for him." Defendant authenticated the recording at trial on April 17, 2025, stating verbatim: "Yes. That is my voice." Defendant Abdelhalim testified at trial that "no contact" occurred, directly contradicting his 911 call admission.

Support: Reporter's Transcript, trial proceedings, CGC-21-594102.

FACT 20: DEFENSE INDEPENDENTLY SUBPOENAED SFPD

Prior defense counsel independently issued a subpoena to the San Francisco Police Department requesting the same 911 audio, body-worn camera footage, and related data, demonstrating defense-side recognition that these records were critical to the case.

Support: Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, p. 140, ll. 9–15, CGC-21-594102.

FACT 21: JURY QUESTION REGARDING VEHICLE CODE STATUTES

During deliberations, the jury submitted a written question asking about Vehicle Code sections 22107 and 21804(a), and the Court instructed the jury that these sections were "not part of the evidence" and the jury was "not permitted to consider" them.

Support: Jury question; Reporter's Transcript, court's response to jury question, CGC-21-594102.

BASIS FOR JUDICIAL SUMMARY

These twenty-one facts are drawn from court transcripts and official court records. They are not reasonably subject to dispute. Plaintiff requests the Court to decide that these facts are established for all purposes in this action. Any denial of these transcript-established facts is frivolous.

Together, they establish the factual foundation for the complaint's three-leg framework: Leg 1 (Knowledge/Access): Facts 1, 2, 3, 9, 18, 20. Leg 2 (False Representations): Facts 4, 5, 6, 7, 8. Leg 3 (Court Reliance): Facts 15, 16, 17. The time-gap facts (12, 13, 14) establish the implausibility of a benign misunderstanding. Facts 19, 20, 21 support the meritorious-case element and prejudice showing.

Dated: _____, 2026

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